

THE NATIONAL ANTI-DOPING ACT, 2022

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Union of India - Act

THE NATIONAL ANTI-DOPING ACT, 2022

UNION OF INDIA

India

THE NATIONAL ANTI-DOPING ACT, 2022

Act 15 of 2022

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An Act to provide for the constitution of the National Anti-Doping Agency for regulating anti-doping activities in sports and to give effect to the United Nations Educational, Scientific and Cultural Organisation International Convention against doping in sport, and compliance of such other obligations and commitments thereunder and for matters connected therewith or incidental thereto.

WHEREAS India is a signatory to the United Nations Educational, Scientific and Cultural Organisation International Convention against doping in sport;

AND WHEREAS India has ratified the said Convention on the 7th day of November, 2007;

AND WHEREAS it is considered expedient to maintain highest standards of integrity while participating and preparing for sports competition domestically and internationally, to regulate anti-doping activities in sports and to meet obligations of India under the said Convention.

BE it enacted by Parliament in the Seventy-third Year of the Republic of India as follows:?

Chapter I

PRELIMINARY

1.

Short title and commencement

(1)

This Act may be called the National Anti-Doping Act, 2022.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

In this Act, unless the context otherwise requires,?

(a)

"Agency" means the National Anti-Doping Agency incorporated and constituted under sub-section (1) of section 14;

(b)

"Anti-Doping Rule Violation" means the circumstance, act or conduct specified in section 4;

(c)

"Appeal panel" means the National Anti-Doping Appeal panel constituted under section 12;

(d)

"athlete" means any person who competes in any sport at the national level or international level or participates in any competition or event to which this Act applies;

(e)

"athlete support personnel" means any coach, trainer, manager, agent, team staff, official, medical or paramedical personnel or such other person working with or treating or assisting an athlete who is participating in, or preparing for, a competition or event at the national level or international level or to which this Act applies;

(f)

"Board" means the National Board for Anti-Doping in Sports established under sub-section (1) of section 7;

(g)

"Chairperson" means the Chairperson of the Board appointed under sub-section (2) of section 7;

(h)

"Code" means the World Anti-Doping Code adopted and amended from time to time by the World Anti-Doping Agency;

(i)

"competition" means a single race, match, game or singular contest;

(j)

"Convention" means the United Nations Educational, Scientific and Cultural Organisation International Convention against doping in sport;

(k)

"Director General" means the Director General appointed under sub-section (3) of section 14;

(l)

"Disciplinary Panel" means the National Anti-Doping Disciplinary Panel constituted under sub-section (1) of section 11;

(m)

"dope testing laboratory" means a laboratory established or recognised under section 26;

(n)

"doping Control" includes all steps and processes from test distribution planning up to the disposal of any appeal and enforcement of consequences, including all steps and processes in between, including but not limited to, testing, investigation, whereabouts, Therapeutic Use Exemptions, sample collection and handling, laboratory analysis, Results Management, hearings and appeals, and investigations or proceedings relating to an Anti-Doping Rule Violation;

(o)

"doping in sport" means the occurrence of any Anti-Doping Rule Violations specified in section 4;

(p)

"event" means a series of individual competitions conducted together under anyone ruling body, such as Olympic Games, World Championships of an International Federation and such other event;

(q)

"In-competition Testing" means collection of sample for testing from an athlete who is participating in a competition where such collection is made at any time during the period commencing at 11:59 p.m. on the day before the competition in which such athlete is scheduled to participate till the end of such competition and the sample collection process related to such competition;

(r)

"international event" means an event or competition where the International Olympic Committee, the International Paralympic Committee, an International Federation, a major event organisation or another international sport organisation is the governing body for such event or appoints the technical officials for the event;

(s)

"International Federation" means the international governing body for a particular sport;

(t)

"Member" means a Member of the Board appointed under sub-section (2) of section 7 and includes the Chairperson thereof;

(u)

"national event" means a sport event or competition involving international level or national level athletes which is not an international event;

(v)

"National Sports Federation" means any recognised body governing a particular sport to which the Code is applicable;

(w)

"Other Anti-Doping Organisations" means organisations which are responsible for adopting anti-doping rules for initiating, implementing or enforcing any part of the doping control process and include the World Anti-Doping Agency, the International Olympic Committee, the International Paralympic Committee, other major event organisations that conduct testing at their events and International Federations, but does not include the Agency;

(x)

"Out-of-competition Testing" means sample collection during any period other than the period specified for in-competition testing;

(y)

"person" means a natural person or an organisation or other entity;

(z)

"prescribed" means prescribed by rules made under this Act;

(za)

"Prohibited List" means the list of prohibited substances and prohibited methods specified by the Agency by regulations;

(zb)

"prohibited method" means any method listed in the Prohibited List;

(zc)

"prohibited substance" means any substance listed in the Prohibited List;

(zd)

"regulations" means regulations made by the Board or the Agency, as the case may be;

(ze)

"sample" means any biological material collected from an athlete for the purpose of doping control under this Act;

(zf)

"Society" means the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, registered as a society under the Societies Registration Act, 1860 and functioning as such immediately before the commencement of this Act;

(zg)

"testing" means the parts of the doping control process involving test distribution planning, sample collection, sample handling, sample transport to the laboratory and testing of samples;

(zh)

"use" means the utilisation, application, ingestion, injection or consumption by any means whatsoever of any prohibited substance or prohibited method;

(zi)

"World Anti-Doping Agency" means an international agency established on 10th November, 1999 in Switzerland which adopts and amends the Code for giving effect to anti-doping policies and international standards.

Chapter II

PROHIBITION OF DOPING IN SPORT AND ANTI-DOPING RULE VIOLATIONS

3.

Prohibition of doping in sport.

(1)

No athlete, athlete support personnel or other persons shall indulge in doping in sport.

(2)

Every athlete, athlete support personnel or other persons shall ensure that there is no occurrence of any Anti-Doping Rule Violation as specified in section 4.

(3)

Every athlete shall participate in a sport competition at all levels with highest standards of integrity and ethics and in accordance with the provisions of this Act and the rules and regulations made thereunder.

(4)

Every athlete, athlete support personnel and other persons participating or involved in sport shall accept the anti-doping rules as a condition of such participation or involvement and be bound by the provisions of this Act and the rules and regulations made thereunder.

(5)

Every athlete, athlete support personnel and other persons shall be responsible for knowing what constitutes Anti-Doping Rule Violations and the restrictions on the use of prohibited substances and the prohibited methods which are included in the Prohibited List.

(6)

The provisions of this Act shall apply to such persons who are specified by the Central Government to be protected persons, to such extent and in such manner, as may be prescribed.

4.

Anti-Doping Rule Violations.

Anyone or more of the following circumstances or acts or conduct by an athlete or athlete support personnel or other persons shall constitute Anti-Doping Rule Violation for the purposes of this Act, namely:?

(a)

the presence of a prohibited substance or its metabolites or markers in an athlete's sample;

(b)

use or attempted use of any prohibited substance or a prohibited method, unless such use is exempted by the Agency under section 5;

(c)

refusing or failing without compelling justification, to submit sample collection after notification as authorised in applicable anti-doping rules or otherwise evading sample collection;

(d)

whereabouts failure;

Explanation.?For the purposes of this clause, the term "whereabouts failure" means?

(i)

filing failure, that is to say, the athlete has failed to submit his whereabouts information before the required deadline or to update the same after change in circumstances or if submitted on time, has submitted incomplete, inaccurate or insufficient information to locate him for testing; or

(ii)

missed test, that is to say, though the athlete has filed his whereabouts information, he is not available at the location for testing; or

(iii)

such other omissions or failures as may be specified by the Agency by regulations;

(e)

tampering, or attempting to tamper, with any part of doping control;

(f)

possession of prohibited substances or prohibited methods;

(g)

trafficking or attempted trafficking in any prohibited substance or prohibited method;

(h)

administration or attempted administration of a prohibited substance or prohibited method to any athlete;

(i)

assisting, encouraging, aiding, abetting, conspiring, covering up or any other type of complicity involving an Anti-Doping Rule Violation or any attempted Anti-Doping Rule Violation or violation of the prohibition against participation during ineligibility or provisional suspension;

(j)

prohibited association with such athlete, athlete support personnel or other persons as may be specified by the Agency by regulations;

(k)

discouraging or retaliating against reporting to authorities;

(l)

such other circumstances, or engaging in such other acts or conduct, which amounts to Anti-Doping Rule Violation, as may be specified by the Agency by regulations.

5.

Therapeutic Use Exemptions.

(1)

Where any substance or method is included in the Prohibited List and such prohibited substance or prohibited method is required for use by any athlete on the ground of medical conditions, such athlete may make an application to the Agency for granting Therapeutic Use Exemption in respect of such prohibited substance or prohibited method.

(2)

The Agency may consider the application received by it under sub-section (1) in such manner and after taking into consideration such criteria as may be specified by regulations.

(3)

The Agency shall, either grant or refuse to grant Therapeutic Use Exemptions in respect of the application received under sub-section (1), in such manner as may be specified by regulations.

(4)

Any person aggrieved by the decision of the Agency under sub-section (3) may prefer an appeal to the Appeal Panel.

6.

Consequences of Anti-Doping Rule Violations.

(1)

The consequences of Anti-Doping Rule Violations by an individual athlete or athlete support personnel may result in one or more of the following, namely:?

(a)

disqualification of results with all consequences including forfeiture of medals, points and prizes, in such manner as may be specified by the Agency by regulations;

(b)

ineligibility to participate in any competition or event or other activity or funding, for such period and in such manner, as may be specified by the Agency by regulations;

(c)

provisional suspension from participating in any competition or activity prior to the decision in appeal under section 23 in such manner as may be specified by the Agency by regulations;

(d)

imposition of financial sanction including proportionate recovery of costs, in such manner as may be specified by the Agency by regulations;

(e)

public disclosure and such other consequences as may be specified by the Agency by regulations.

(2)

The consequences of Anti-Doping Rule Violations for team sports and protected persons shall be such as may be specified by regulations.

Chapter III

NATIONAL BOARD FOR ANTI-DOPING IN SPORTS

7.

Establishment and constitution of National Board for Anti-Doping in Sports.

(1)

With effect from such date as the Central Government may, by notification in the Official Gazette, appoint in this behalf, there shall be established, for the purposes of this Act, a Board to be called the National Board for Anti-Doping in Sports.

(2)

The Board shall consist of a Chairperson and two Members to be appointed by the Central Government:

Provided that no person shall be appointed as the Chairperson or Member of the Board, or continue to hold such position, if such person is involved in the management or operation of any International Federation, National Sports Federation, Major Event Organisation, National Olympic Committee, National Paralympic Committee or is in the Government department with responsibility for sport or anti-doping.

(3)

The Chairperson shall be a person of ability, integrity and standing who has knowledge and experience of not less than twenty years in the field of general administration, sport administration or is a retired eminent athlete.

(4)

A Member shall be a person of ability, integrity and standing who has knowledge and experience of not less than fifteen years in the field of general administration, medical sciences, law or is a retired eminent athlete.

Explanation.—For the purposes of this sub-section, the term "eminent athlete" means a sportsperson who has been conferred with a national sports award or Padma award for his outstanding contribution to the development of national sports in terms of medals won in international events.

(5)

The term of office of the Chairperson and Members shall be three years or till they attain the age of sixty-five years, whichever is earlier.

(6)

In the event of the occurrence of a vacancy in the office of the Chairperson or Member by reason of death, resignation or otherwise, or, when the Chairperson or Member is unable to discharge his functions owing to absence, illness or any other cause, the Central Government may assign temporary charge of such office to any person who fulfils the requisite qualification and experience as provided in section 7, and such person shall discharge the functions of the Chairperson or Member, as the case may be, until a new Chairperson or Member, appointed in accordance with the provisions of this Act to fill such vacancy, enters upon his office, or until the date on which the Chairperson or Member resumes the charge of his functions.

(7)

The Chairperson or a Member shall not accept, either during his term of office or for a period of one year from the date on which he ceases to hold office, any employment, in any capacity whatsoever, with any International Federation or National Sports Federation or with any organisation, body or entity whose matter has been dealt with, directly or indirectly, by such Chairperson or Member:

Provided that nothing contained herein shall be construed as preventing such person from accepting an employment in a body or institution controlled or maintained by the Central Government or a State Government.

(8)

The Chairperson or a Member may?

(a)

relinquish his office by giving in writing to the Central Government, a notice of not less than three months; or

(b)

be removed from his office by the Central Government, if he?

(i)

has been adjudged an insolvent; or

(ii)

has been convicted of an offence which, in the opinion of the Central Government, involves moral turpitude; or

(iii)

has become physically or mentally incapable of acting as a Member; or

(iv)

has acquired such financial or other interest as is likely to affect prejudicially his functions as a Member; or

(v)

has so abused his position as to render his continuance in office prejudicial to the public interest; or

(vi)

has been found to have committed any Anti-Doping Rule Violation:

Provided that no person shall be so removed from his office under sub-clause (iv) or sub-clause (v) of clause (b), unless such person has been given a reasonable opportunity of being heard in the matter.

(9)

The salaries and allowances payable to, and other conditions of service of, the Chairperson and members shall be such as may be as prescribed.

8.

Meetings of Board.

(1)

The Board shall meet at such times and places, and shall observe such procedure with regard to the transaction of business at its meetings (including the quorum at such meetings) as may be provided by regulations made by the Board.

(2)

Every decision of the Board shall, as far as possible, be on the basis of a simple majority.

(3)

No act or proceeding of the Board shall be invalidated merely by reason of?

(a)

any vacancy in, or any defect in the constitution of, the Board;

(b)

any defect in the appointment of a person acting as a member of the Board;

(c)

any irregularity in the procedure of the Board not affecting the merits of the case.

9.

Officers and employees of Board.

(1)

The Central Government shall provide the Board with such officers and employees as may be necessary for the efficient discharge of its functions under this Act.

(2)

The salaries and allowances payable to, and other conditions of service of, officers and other employees of the Board shall be such as may be prescribed.

10.

Powers and functions of Board.

(1)

Subject to the provisions of this Act, the Board shall be responsible for ensuring implementation of the international obligations and commitments and monitoring the compliance thereof.

(2)

The Board shall advise the Central Government and make recommendations relating to regulating anti-doping in sports and international obligations and commitments.

(3)

The Board shall oversee the activities of the Agency and may call for such information and reports from the Agency as may be required including reports on?

(a)

the activities of Agency towards ensuring compliance with the anti-doping rules;

(b)

matters of integrity and fair play in sports;

(c)

implementation of the notified or adopted anti-doping measures or policies;

(d)

strategic planning of its anti-doping activities for the forthcoming years;

(e)

any other matter which the Board may deem expedient for fulfilling the objective of eliminating doping in Sports.

(4)

The Board may make such recommendations to the Agency as may be necessary for elimination of doping in sport.

(5)

The Board may call for such information from the Disciplinary Panel and the Appeal Panel on its operations and issue such directions, as may be necessary, for the effective and timely discharge of their functions with respect to Anti-Doping Rule Violations under this Act:

Provided that such directions shall be limited to procedural efficiency of the Disciplinary Panel and the Appeal Panel and shall not, in any case, interfere with their decision making process.

11.

Disciplinary Panel.

(1)

The Board shall, for the purpose of determining the consequences of Anti-Doping Rule Violations under this Act, constitute a National Anti-Doping Disciplinary Panel, in such manner as may be specified by regulations.

(2)

The Disciplinary Panel shall consist of?

(a)

a Chairperson, who is a legal expert, having not less than ten years of standing as legal practitioner;

(b)

four Vice-Chairpersons, who are legal experts, having not less than seven years of standing as legal practitioners;

(c)

five members, who are registered medical practitioners, having not less than five years of standing;

(d)

five members, who are sports administrators for not less than five years or retired eminent athletes.

(3)

The Chairperson, Vice-Chairperson and other members of the Disciplinary Panel shall be appointed by the Board for a term of two years, in such manner and subject to such conditions, as may be specified by regulations:

Provided that each member shall be eligible for reappointment.

(4)

If a member of Disciplinary Panel dies or resigns, or is otherwise removed from the Panel by the Board on such grounds as may be specified by regulations, the Board may appoint a suitable person to fill such vacancy for the remainder of the term of the member in whose place such person is appointed.

(5)

For the purposes of hearing and determining consequences of Anti-Doping Rule Violations under this Act, a hearing panel of three members shall be formed by the Chairperson of the Disciplinary Panel or in his absence, by the Vice-Chairperson; and each such panel shall consist of the Chairperson or the Vice-Chairperson as its Chairperson, one member who is a medical practitioner and other member who is a sports administrator or retired eminent athlete.

12.

Appeal Panel.

(1)

For the purposes of hearing of appeals under this Act, the Board shall constitute a National Anti-Doping Appeal Panel, in such manner as may be specified by regulations.

(2)

The Appeal Panel shall consist of?

(a)

a Chairperson, who is a retired Judge of a High Court;

(b)

a Vice-Chairperson, who is a legal expert, having not less than ten years of standing as legal practitioner;

(c)

two members, who are registered medical practitioners, having not less than ten years of standing;

(d)

two members, who are, or have been, retired eminent athletes or sports administrators for not less than ten years.

(3)

The Chairperson, Vice-Chairperson and other members of the Appeal Panel shall be appointed by the Board for a term of two years, in such manner and subject to such conditions, as may be specified by regulations:

Provided that each member shall be eligible for reappointment.

(4)

If a Panel member dies or resigns, or is otherwise removed from the Panel by the Board on such grounds as may be specified by regulations, the Board may appoint a suitable person to fill such vacancy for the remainder of the term of the member in whose place such person is appointed.

(5)

For the purposes of hearing of appeals under this Act, a panel of three members shall be formed by the Chairperson of the Appeal Panel or in his absence, by the Vice-Chairperson; and each such panel shall consist of the Chairperson or the Vice-Chairperson as its Chairperson, one member who is a medical practitioner and other member who is a sports administrator or retired eminent athlete.

13.

Annual report.

(1)

The Board shall furnish to the Central Government an annual report containing such details of the steps taken, proposals made, researches undertaken and other measures undertaken by it in pursuance of its functions under section 10, in such form and manner as may be prescribed.

(2)

The Central Government shall cause the annual report furnished under sub-section (1) to be laid before each House of Parliament.

Chapter IV

NATIONAL ANTI-DOPING AGENCY

14.

Incorporation of National Anti-Doping Agency.

(1)

The National Anti-Doping Agency, established as a society and functioning as such, prior to the coming into force of this Act, is hereby constituted a body corporate by the same name, and as such body corporate, it shall have perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall, by that name, sue and be sued.

(2)

The Head Office of the Agency shall be at New Delhi.

(3)

The Agency shall be headed by an officer designated as the Director General to be appointed by the Central Government:

Provided that the Director General appointed prior to the commencement of this Act and holding the office as such, shall be deemed to have been appointed as the Director General under this Act.

(4)

The Central Government shall, in consultation with the Board and the Director General, determine the number, nature and categories of officers and other staff required to assist the Agency in the discharge of its function and provide the Agency with such officers and employees as it may deem fit.

(5)

The salaries and allowances payable to, and other terms and conditions of service of, the Director General, officers, and other staff of the Agency shall be such as may be prescribed.

(6)

The power to oversee the activities of the Agency shall vest in the Board.

15.

Director General.

(1)

The Director General shall be appointed by the Central Government from amongst persons of integrity and outstanding ability possessing such qualifications and experience as may be prescribed.

(2)

The Director General shall hold office on full-time basis for a period of three years, which may be extended to such further period, as the Central Government deems fit.

(3)

The Director General shall be responsible for the execution of the powers and functions of the Agency specified in section 16.

(4)

The Board may assign such responsibilities to the Director General from time to time as it may deem expedient for fulfilling the objective of eliminating doping in sport.

(5)

In the event of the occurrence of a vacancy in the office of the Director General by reason of his death, resignation or otherwise, the Central Government may appoint any other person to discharge the functions of the Director General until a new Director General is appointed in accordance with the provisions of this Act to fill such vacancy.

(6)

When the Director General is unable to discharge his functions owing to absence, illness or any other cause, the Central Government may appoint any other person to act as the Director General until the date on which the Director General resumes the charge of his functions.

(7)

The Director General may relinquish his office by giving in writing to the Central Government a notice of not less than three months:

Provided that such resignation shall be effective from the date when it is accepted by the Central Government.

(8)

The Central Government may remove the Director General at any time before the expiry of his term of office on the ground of proven misbehavior or incapacity or such other ground, after giving him a reasonable opportunity of showing cause against any such charge.

(9)

The Director General shall have administrative control over the officers and other staff of the Agency.

16.

(1)

The Agency shall be responsible for adopting and implementing anti-doping rules, regulations and policies which conform to international obligations and commitments for promoting, coordinating and monitoring the doping control programme in sports to ensure dope-free sport.

(2)

The Agency shall have the primary responsibility to implement the provisions of this Act and may direct the collection of samples, manage test results and conduct results management at the national level.

(3)

Without prejudice to the generality of the foregoing provisions, the Agency shall perform the following functions, namely:?

(a)

the planning, coordination, implementation and monitoring of anti-doping activities, including effective testing and whereabouts management;

- (b) taking measures to prevent Anti-Doping Rule Violations;
- (c) undertaking anti-doping sensitisation and advocacy measures;
- (d) carrying out investigation and conducting results management of any Anti-Doping Rule Violations;
- (e) adopting and implementing anti-doping rules and policies which conform to international obligations and commitments and perform its functions in accordance with such rules and policies;
- (f) implementing the Convention in accordance with the Act;
- (g) enforcing anti-doping rules by exercising authority over athletes, athlete support personnel and other persons, including National Sports Federations and other sports organisations;
- (h) promoting anti-doping research;
- (i) coordinating and cooperating with the World Anti-Doping Agency, Other Anti-Doping Organisations, National Sports Federations and International Federations;
- (j) coordinate and collaborate with concerned authorities and stakeholders in matters relating to establishment of best practices in the marketing and distribution of nutritional supplements including information regarding their analytical composition and quality assurance;
- (k) facilitating sharing and free flow of information relating to the use of doping substances, doping practices or any Anti-Doping Rule Violation between sports bodies, officials conducting competition or event, Other Anti-Doping Organisations and the Agency;
- (l) establishing code of conduct for officers and employees of the Agency and for such other persons or agencies engaged by the Agency;
- (m) establishing standards for the manufacturing of nutritional supplements for sport in India;
- (n) undertaking any other activity specified by regulations by the Board that may be expedient for fulfilling the objective of eliminating doping in sport.

(4) The Agency may make such regulations, as it deems necessary, for the effective discharge of its functions.

17.

Power to constitute committees.

The Agency may constitute such committees, as it deems fit, for the discharge of its function under this Act, including Therapeutic Exemption Committee, Investigation Committee, Sample Collection and Testing Committee, Result Management Committee and Education Committee, in such manner as may be specified by regulations.

18.

Constitution of investigation teams and engagement of experts and professionals by Agency.

(1)

Where the Agency considers it necessary so to do, it may constitute one or more investigation teams, consisting of such officers or such persons, as it thinks necessary, for the purposes of carrying out its functions under this Act.

(2)

The Agency may engage such number of experts and professionals, having such qualifications and experience, and in such manner, as may be specified by regulations, to assist the Agency in the discharge of its functions under this Act.

Chapter V

DOPING CONTROL PROCESS

19.

Power of entry, search and seizure.

(1)

Where the Agency has reasons to believe that an athlete or athlete support personnel or any other person to whom this Act applies has committed an Anti-Doping Rule Violation, any person authorised by the Agency may, in accordance with the provisions of the Code of Criminal Procedure, 1973,?

(a)

enter any place, at all reasonable times, with such assistance as is considered necessary, for the purpose of inspecting, examining and determining if any Anti-Doping Rule Violation has been committed or is being committed;

(b)

search any premises in which the officer has reason to believe that any Anti-Doping Rule Violation has been, or is being, or is about to be, committed;

(c)

seize any equipment, device, substance, record, register, document or other material object, if such officer believes that it may furnish evidence of such Anti-Doping Rule Violation or that seizure is necessary to prevent or mitigate any Anti-Doping Rule Violation.

(2)

Save as otherwise provided in this Act, the procedure for investigation or taking any other action under this section shall be such as may be specified by regulations.

20.

Power of collecting samples and testing.

Where the Agency has reasons to believe that an athlete has committed an Anti-Doping Rule Violation, it shall require such athlete to submit samples for testing, in accordance with such procedure and in such manner, as may be specified by regulations.

21.

Result management process.

(1)

After receiving an adverse report from a dope testing laboratory showing presence of any prohibited substance in the sample of an athlete, the Agency shall carry out initial examination of the report in such manner as may be specified by regulations, and verify if Therapeutic Use Exemption has been granted to such athlete in respect of such substance.

(2)

Where, after examination and verification under sub-section (1), the Agency is satisfied that no Therapeutic Use Exemption has been granted to the athlete, it shall take such actions and in such manner as may be specified by regulations.

22.

Hearing by Disciplinary Panel and determination of consequences thereof.

(1)

After the issuance of a notice by the Agency to the athlete or other person asserting the commission of Anti-Doping Rule Violation under this Act, if such athlete or the other person does not waive his right of hearing in the manner specified by regulations, the Agency shall refer such matter to the Disciplinary Panel for hearing and determination of consequences of such Anti-Doping Rule Violation.

(2)

The Disciplinary Panel shall hear and determine all issues arising from any matter which is referred to it, and determine the consequences of Anti-Doping Rule Violations.

(3)

Every party shall have a right to be represented, and to have an interpreter, at their own cost.

(4)

The Disciplinary Panel shall have power, at its own discretion, to appoint an expert to assist or advice it on such matters as it may require.

(5)

Subject to such regulations as may be made by the Board, the Disciplinary Panel shall have power to regulate its own procedure.

(6)

Each party to the proceedings shall have right to present the evidence, including the right to call and question witnesses, subject to the discretion of the Disciplinary Panel.

(7)

The parties to the proceedings may submit written submissions with all documents relied upon, in such manner and within such time, as may be specified by regulations.

(8)

The Disciplinary Panel shall after hearing all parties and after considering all evidence placed before it, by an order in writing made unanimously or by majority, determine the consequences of Anti-Doping Rule Violations in accordance with the provisions of section 6 and the regulations made thereunder.

(9)

The decision of the Disciplinary Panel shall be communicated in such manner, as may be specified by regulations.

23.

Hearing of appeal by Appeal Panel.

(1)

Any person who is aggrieved by any decision under this Act, including?

(a)

a refusal to grant Therapeutic Use Exemption under section 5;

(b)

imposition of consequences for an Anti-Doping Rule Violation under section 6;

(c)

such other decision as may be specified by regulations, may prefer an appeal to the Appeal Panel in such form, within such time, and in such manner, as may be specified by regulations.

(2)

Subject to such regulations as may be made by the Board, the Appeal Panel shall have power to regulate its own procedures.

(3)

The Appeal Panel shall have power, at its own discretion, to appoint an expert to assist or advice it on such matters as it may require.

(4)

Every party shall have a right to be represented, and to have an interpreter, at their own cost.

(5)

Each party to the proceedings shall have right to present relevant evidence, to call and examine witnesses and to submit written and oral submissions.

(6)

The Appeal Panel shall complete hearing as expeditiously as possible, and endeavour shall be made to dispose of such appeal within three months of the date of order of the Disciplinary Panel.

(7)

The Appeal Panel shall, after hearing all parties and considering all evidences placed before it, by an order in writing, made unanimously or by majority, either confirm or vary or set aside the order of the Disciplinary Panel.

(8)

The decision of the Appeal Panel shall be communicated to the parties concerned, in such manner, as may be specified by regulations.

(9)

Any person who is aggrieved by the decision of the Appeal Panel may prefer an appeal to the Court of Arbitration for Sport, in accordance with such rules as may be provided by the Court of Arbitration for Sport.

Explanation.?For the purposes of this sub-section, "Court of Arbitration for Sport" means an international body established in 1984 to settle disputes related to sport through arbitration whose headquarter is in Lausanne, Switzerland.

Chapter VI

FINANCE , ACCOUNTS , AUDIT AND REPORTS

24.

Grants by Central Government.

The Central Government may, after due appropriation made by Parliament by law in this behalf, grant such sums of money as the Central Government may think fit for being utilised for the purposes of this Act and to comply with its commitments under the Convention, and such funds shall be utilised to meet all the expenses incurred on administrative and operational requirements of the Board, the Agency and the national Dope Testing Laboratory established under sub-section (1), or under clause (b) of sub-section (2), of section 26 (hereafter in this Chapter referred to as the concerned bodies), in such manner as may be specified by regulations.

25.

Accounts and audit.

(1)

The concerned bodies shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form as may be prescribed by the Central Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the concerned bodies shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the concerned bodies to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the concerned bodies shall have the same rights and privileges and authority in connection with such audit as the Comptroller and Auditor-General of India generally has in connection with the audit of Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the concerned bodies.

(4)

The accounts of the concerned bodies as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf, together with the audit report thereon shall be forwarded annually to the Central Government by the concerned bodies and the Central Government shall cause the audit report to be laid, as soon as may be after it is received, before each House of Parliament.

Chapter VII

MISCELLANEOUS

26.

(1)

The National Dope Testing Laboratory, established and functioning as such prior to the commencement of this Act shall be deemed to be the principal dope testing laboratory established under this Act and shall continue to function for the purposes of this Act in such manner as may be prescribed.

(2)

The Central Government may,?

(a)

recognise one or more laboratories or institutes located within India as dope testing laboratories to carry out the functions entrusted to a dope testing laboratory under this Act or the rules and regulations made thereunder;

(b)

establish one or more National Dope Testing Laboratories, including laboratories for undertaking research in anti-doping science and related fields:

Provided that every dope testing laboratory recognised or established under this section may, if required, obtain the accreditation of the World Anti-Doping Agency or of such other accrediting bodies, and shall maintain the requisite accreditations as a condition for continuation as a dope testing laboratory under this Act.

(3)

Every National Dope Testing Laboratory and other dope testing laboratories established or recognised under this

section shall have the authority to?

- (i)
test the sample for any sports federation or sports event not recognised by the International Olympic Committee or the Central Government;
- (ii)
undertake sample analysis of sports other than any national or international event;
- (iii)
undertake any other tests or samples analysis as may be prescribed.

(4)

The Central Government may make rules to provide for?

- (a)
the qualifications and experience for appointment as technical and non-technical staff of the National Dope Testing Laboratory;
- (b)
the salaries and allowances payable to, and other conditions of service of, the technical and non-technical staff of the National Dope Testing Laboratory;
- (c)
the standards for establishment, recognition, maintenance and operation of a dope testing laboratory and the manner of granting recognition to such dope testing laboratory;
- (d)
the functions of the dope testing laboratory, the procedure for submission to the said laboratory of samples for analysis or tests and other standard operative procedures.

27.

Data of athletes and maintenance of database.

(1)

The Agency shall have the power to collect, use and process the following personal data for the purposes of implementation of the objectives of the Act and in accordance with applicable data privacy regulations, namely:?

- (a)
sex or gender of the athlete;
- (b)
list of Anti-Doping Rule Violations committed by an athlete under the Act and the details of such violation;
- (c)
medical history of the athlete;
- (d)
whereabouts information of the athlete;
- (e)
any other personal data as may be specified by regulations.

(2)

The Agency may make regulations to govern the procedure for collection, usage, processing and disclosure of the personal data specified in sub-section (1).

(3)

The Agency shall establish and maintain a database to record all the sanctions awarded by the Agency, the Disciplinary Panel and the Appeal Panel and such other details of the sanctions, in such manner, as may be specified by regulations.

(4)

The Agency shall publicly disclose the disposition of the anti-doping matter, including the sport, the anti-doping rule violated, the name of the athlete or other person committing the Anti-Doping Rule Violation, the prohibited substance or prohibited method involved (if any) and the consequences imposed, in accordance with such procedure as may be specified by regulations.

28.

Application of Act, rules and regulations to other athletes and sports bodies, etc.

(1)

The provisions of this Act and the rules and regulations made thereunder shall apply to such other athletes or sport bodies, or to competition or event at such other level, as the Central Government may, by notification in the Official Gazette, specify.

(2)

Every person to whom this Act is made applicable under sub-section (1), shall be bound by, and have the obligation to comply with, the provisions of this Act and the rules and regulations made thereunder.

29.

Power to make rules.

The Central Government may, by notification in the Official Gazette, make rules for all or any of the following matters, namely:—

(a)

the protected persons and the extent and manner of application of the provisions of this Act to such persons under sub-section (6) of section 3;

(b)

the salaries and allowances payable to, and other conditions of service of, the Chairperson and Members of the Board under sub-section (9) of section 7;

(c)

the salaries and allowances payable to, and other conditions of service of, officers and other employees of the Board under sub-section (2) of section 9;

(d)

the form and the manner in which an annual report shall be furnished under sub-section (1) of section 13;

(e)

the salaries and allowances payable to, and other conditions of service of, the Director General, officers and other staff of the Agency under sub-section (5) of section 14;

(f)

the qualifications and experience for appointment as Director General under sub-section (1) of section 15;

(g)

the form in which annual statement of accounts shall be prepared under sub-section (1) of section 25;

(h)

the manner in which the National Dope Testing Laboratory shall carry out its functions under sub-section (1) of section 26;

(i)

the manner of undertaking other tests or samples analysis under clause (iii) of sub-section (3) of section 26;

(j)

the qualifications and experience for appointment as technical and non-technical staff of the National Dope Testing Laboratory, under clause (a) of sub-section (4) of section 26;

(k)

the salaries and allowances payable to and other conditions of service of the technical and non-technical staff of the National Dope Testing Laboratory, under clause (b) of sub-section (4) of section 26;

(l)

the standards for establishment, recognition, maintenance and operation of dope testing laboratories and the manner of granting recognition to such laboratories, under clause (c) of sub-section (4) of section 26;

(m)

the functions of the dope testing laboratory and the procedure for the submission to the said laboratory of samples for analysis or tests, under clause (d) of sub-section (4) of section 26;

(n)

any other matter which has to be, or may be, prescribed, for fulfilling obligations of the country under the Convention.

30.

Power to make regulations by Board.

The Board may, by notification in the Official Gazette, make regulations, not inconsistent with the provisions of this Act,

for all or any of the following matters, namely:?

- (a)
the times and places for meetings and the procedure for transaction of business at meetings of the Board (including the quorum), under sub-section (1) of section 8;
- (b)
the manner of constituting a Disciplinary Panel under sub-section (1) of section 11;
- (c)
the manner of appointment of the Chairperson and Vice-Chairperson and other members of the Disciplinary Panel and the conditions subject to which such appointments shall be made under sub-section (3) of section 11;
- (d)
the grounds on which a member of Disciplinary Panel may be removed under sub-section (4) of section 11;
- (e)
the manner of constituting an Appeal Panel under sub-section (1) of section 12;
- (f)
the manner of appointment of the Chairperson and Vice-Chairperson and other members of the Appeal Panel and the conditions subject to which such appointments shall be made under sub-section (3) of section 12;
- (g)
the grounds on which a member of Appeal Panel may be removed under sub-section (4) of section 12;
- (h)
the other activities to be undertaken by the Agency for eliminating doping in sport under clause (n) of sub-section (3) of section 16;
- (i)
the procedure to be followed by the Disciplinary Panel under sub-section (5) of section 22;
- (j)
the manner in which, and the time within which, written submissions may be submitted under sub-section (7) of section 22;
- (k)
the manner of communicating the decision of the Disciplinary Panel under sub-section (9) of section 22;
- (l)
the other decisions against which appeal may be filed, and the form and manner in which and the time within which appeal may be filed, under sub-section (1) of section 23;
- (m)
the procedure to be followed by the Appeal Panel under sub-section (2) of section 23;
- (n)
the manner of communicating the decision of the Appeal Panel under sub-section (8) of section 23;
- (o)
any other matter which has to be, or may be, specified by regulations, for giving effect to the provisions of this Act or for fulfilling obligations under the Convention, except on matters for which the Agency has power to make regulations under section 31.

31.

Power to make regulations by Agency.

- (1)
The Agency may, for complying with the requirements of international obligations and commitments including the Code, make regulations on the following matters:?
 - (a)
the procedure, methods and standards for testing and analysis and sample collection;
 - (b)
the procedure and standards for collection, storage and retention of samples and results management in relation to samples;
 - (c)
the procedure for investigation and determination of Anti-Doping Rule Violations and imposition of sanctions for an

Anti-Doping Rule Violation;

(d)

the procedures for negative analytical findings and adverse analytical findings, and principles governing the provisional suspension of an athlete or other person alleged to have committed an Anti-Doping Rule Violation;

(e)

the procedures, methods and standards for assessing and granting Therapeutic Use Exemptions;

(f)

the procedure for re-entry of a banned athlete;

(g)

the procedure to be followed for in-competition testing of athletes, methodology for testing and any matters pertaining to in-competition testing of athletes;

(h)

the procedure for qualifying athletes for out-of-competition testing and procedure for undertaking out-of-competition testing of athletes, collection of whereabouts data of such athletes and any matters pertaining to out-of-competition testing of athletes;

(i)

the measures for promotion of research and advocacy in relation to sports doping and testing and methods for sensitising athletes, athlete support personnel, other persons and other concerned stakeholders in relation to the ills of doping;

(j)

the manner of implementing anti-doping control activities and anti-doping education, training and sensitisation programmes to provide updated and accurate information on the harm of doping to the ethical values of sport and the health consequences of doping;

(k)

the procedure for search and seizure of premises, collection of samples, and collection of information and whereabouts data, and consequences for wilful delay, obstruction, destruction or provision of false information by any person in relation to any exercise of power by an empowered person under this Act;

(l)

the manner of taking measures for eradicating doping in sports;

(m)

the manner in which the sports bodies, officials conducting competition or event and other Anti-Doping Organisations may share information relating to the use of doping substances, doping practices or any Anti-Doping Rule Violation with the Agency;

(n)

the manner in which the recommendations made by the Board may be considered by the Agency.

(2)

In particular, and without prejudice to the generality of the foregoing power, the Agency may make regulations, for giving effect to the provisions of the Act, on all or any of the following matters:?

(a)

the prohibited substances and prohibited methods in the Prohibited List under clause (za) of section 2;

(b)

the other omissions or failures under clause (iii) of the Explanation to clause (d) of section 4;

(c)

the prohibited association with athlete support personnel under clause (j) of section 4;

(d)

the other circumstances, or engaging in other acts or conduct, which amounts to Anti-Doping Rule Violation, under clause (l) of section 4;

(e)

the manner of considering the application and the criteria to be taken into consideration under sub-section (2) of section 5;

(f)

the manner of granting or refusing to grant Therapeutic Use Exemptions under sub-section (3) of section 5;

(g)

the manner of imposing disqualification of results under clause (a) of sub-section (1) of section 6;

(h)

the manner of imposing ineligibility to participate in any competition or event or other activity or funding, and the period of such ineligibility, under clause (b) of sub-section (1) of section 6;

(i)

the manner of imposing provisional suspension from participating in any competition or activity under clause (c) of sub-section (1) of section 6;

(j)

the manner of imposing financial sanction including proportionate recovery of costs under clause (d) of sub-section (1) of section 6;

(k)

other consequences under clause (e) of sub-section (1) of section 6;

(l)

the consequences of Anti-Doping Rule Violations for team sports and protected persons under sub-section (2) of section 6;

(m)

the code of conduct for officers and employees of the Agency and for such other persons or agencies engaged by the Agency, under clause (l) of sub-section (3) of section 16;

(n)

the effective discharge of functions of the Agency under sub-section (4) of section 16;

(o)

the manner of constituting committees under section 17;

(p)

the number of experts and professionals to be engaged by the Agency, the qualifications and experience to be possessed by them, and the manner in which they may be engaged, under sub-section (2) of section 18;

(q)

the procedure for investigation or taking any other action, under sub-section (2) of section 19;

(r)

the procedure and the manner for submitting samples for testing under section 20;

(s)

the manner of carrying out the initial examination of the report of a dope testing laboratory under sub-section (1) of section 21;

(t)

the actions to be taken, and the manner in which such actions may be taken, under sub-section (2) of section 21;

(u)

the manner of waiving right of hearing under sub-section (1) of section 22;

(v)

other personal data under clause (e) of sub-section (1) of section 27;

(w)

the procedure for collection, usage, processing and disclosure of the personal data under sub-section (2) of section 27;

(x)

the other details of the sanctions, and the manner of establishing and maintaining a database under sub-section (3) of section 27;

(y)

the procedure for making public disclosure under sub-section (4) of section 27;

(z)

any other matter which has to be, or may be, specified by regulations.

32.

Rules and regulations to be laid before Parliament.

Every rule and regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation, or both Houses agree that the rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

33.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order, published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act, as may appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of five years from the commencement of this Act.

(2)

Every order made under this section shall, as soon as may be after it is made, be laid before each House of Parliament.

34.

Transitional provisions.

On and from the commencement of this Act,?

(a)

the Societies, namely, the National Anti-Doping Agency and the National Dope Testing Laboratory shall stand dissolved;

(b)

any reference to the Society in any contract or other instrument shall be deemed as a reference to the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, established under this Act;

(c)

all properties, movable and immovable, of or belonging to the Society shall vest in the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, established under this Act;

(d)

all the rights and liabilities of the Society shall be transferred to, and be the rights and liabilities of, the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, established under this Act;

(e)

every person employed by the Society, immediately before such commencement, shall hold office in the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same if this Act had not been enacted, and shall continue to be so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by any regulations made under this Act:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, in accordance with the terms of the contract with the employee or, if no provision is made therein in this behalf, on payment, to him by the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, of compensation equivalent to three months' remuneration in case of permanent employees and one month's remuneration in the case of other employees;

(f)

if there are any pending proceedings, including any disciplinary, arbitration, appeal or other legal proceedings, of whatever nature, by or against the Society, the same shall not get abated or discontinued by reason of the incorporation of the Society under this Act, but such proceedings may be continued or enforced by or against the National Anti-Doping Agency or the National Dope Testing Laboratory, as the case may be, in the same manner and to the same extent as it would or may have been continued or enforced by or against the society, if this Act had not been enacted;

(g)

any rules and regulations made prior to such commencement, shall, in so far as they are consistent with the provisions of this Act, continue to be applicable till new rules and regulations are made under this Act.

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